

The above also applies where the R. 71(3) EPC communication was based on an auxiliary request, provided that the applicant does not reply to the R. 71(3) EPC communication by requesting that a grant be based on a higher ranking request. The above also applies where the R. 71(3) EPC communication included proposals by the examining division for amendments or corrections of the text intended for grant. Consequently, provided the applicant does not reject these proposed amendments or corrections in his reply, the completion of the above acts constitutes approval of the text containing the amendments or corrections as proposed by the examining division (Guidelines C-V, 2 – March 2022 version).

In T. 1003/19 the board found that the decision under appeal did not comply with Art. 113(2) EPC and that the examining division had committed a substantial procedural violation; the granted version of the patent corresponded neither to a text submitted by the appellant nor to a text agreed by it, nor to a text deemed to have been approved by it. The appellant had not requested the grant of a patent with any other than the seven drawing sheets as initially submitted and published. The communication under R. 71(3) EPC, however, referred only to "drawings, sheets 1/1 as published". The board noted that appellant did not expressis verbis approve the amended application documents as referred to in the communication and found that the appellant also could not be deemed to have approved the list of documents communicated to it in this communication according to R. 71(5) EPC. The consequence as stipulated in R. 71(5) EPC, i.e. "the applicant ... shall be deemed to have approved the text communicated to him under paragraph 3", only applied where the applicant, according to R. 71(3) EPC, had been informed "of the text in which it [i.e. the examining division] intends to grant" the patent. The board stated that under normal circumstances it was to be assumed that the text referred to in a communication under R. 71(3) EPC reflected the **true will of the examining division** and was therefore identical to the text on the basis of which the grant of the patent was intended. In the present case, however, it found sufficient evidence to conclude that this was not the case in respect of the communication under R. 71(3) EPC. The board further stated that the EPO may on its own initiative suggest minor amendments; however the removal of all drawing sheets showing embodiments of the invention could not be expected to be accepted by an applicant.

The board stated that it had not deviated from G. 1/10, which based its consideration on the requirement according to R. 71(3) EPC that the applicant must be informed of the text in which the examining division intends to grant a patent (see point 10 of the Reasons) and deals with the applicant's possible reactions thereto, like the implicit approval of this text. In contrast thereto the board's decision in the case in hand was based on the fact that the text intended for grant by the examining division had, based on verifiable facts, not been communicated to the appellant and, therefore, R. 71(5) EPC did not (at that time) apply. As a result, no text had been approved by the appellant. The request for reimbursement of the appeal fee was however rejected; while the error was committed by the examining division, the appellant had several instances to spot this error and, at the latest, could and should have noticed it when comparing the text of the communication under R. 71(3) EPC and the "Druckexemplar".

In T 2081/16, the board found that where the text intended for grant is not communicated to the applicant under R 71(3) EPC, the fact that the appellant subsequently files a translation and pays the fees for grant and publishing is not decisive. The provisions of R 71(5) EPC, in this regard, refer to R 71(3) EPC and therefore presuppose that the applicant has not been notified of any text but of the text *intended for grant* (emphasis added by the board). Only in this case would R 71(5) EPC apply and would the filing of a translation and the payment of the relevant fees imply the approval of the text communicated to it. The board found that in the present case neither the documents referred to in Form 2004C nor the "Druckexemplar" reflected the text in which the examining division intended to grant the European patent. In arriving at its decision, the board stated that it had not deviated from G 1/10 and that Art. 21 RPBA 2007 did not therefore apply. In G 1/10, the Enlarged Board of Appeal found that R 140 EPC was not available to correct the text of a patent. This question was not at stake in the case in hand. In the case in hand, no text had been approved by the applicant.

In T 408/21 the board stated that when trying to clarify the intention behind an action or request, this was frequently done in the case law of the Boards of Appeal by identifying the "true will" of the actors in a case. Normally the documents indicated in a communication according to R 71(3) EPC corresponded to the applicant's request and to the examining division's intention; however, in a case where there appeared to be severe doubts as to whether the documents indicated in R 71(3) EPC were actually those intended to be granted by the examining division, the board considered the above-mentioned clarification of the "true will" of the examining division an appropriate means. In line with the T 1003/19 the board concluded that the examining division did not indicate in the communication according to R 71(3) EPC the text it intended to grant in the case in hand. Following T 2081/16 and T 1003/19, the board found that R 71(5) EPC correspondingly did not apply in this case, as in the step preceding the deemed approval the applicant has to be informed of the text in which the examining division intends to grant the patent according to R 71(3) EPC.

In T 2277/19 the board held that the text referred to in the communication under R 71(3) EPC had to be regarded as the text intended for grant. Since this text on the basis of which the patent was granted was approved by the appellant, the requirements of Art. 113(2) EPC were met. The appellant had approved the text intended for grant (subject to the correction of some minor errors in the description). Hence, the board considered that the examining division had legitimately expected the applicant to have checked and verified the Druckexemplar, in particular since the applicant had requested some amendments to the text intended for grant. The board found that the examining division did not have any reason to assume that the approval was based on the prerequisite that only drawing pages 1 to 7 were actually intended for publication. Moreover, the appellant expressly waived its right to the issue of a further communication under R 71(3) EPC. The appellant argued that the facts in the case in hand were very similar to those of decision T 1003/19 with reference also to T 2081/16, but the board did not follow those earlier decisions. In its view there was no legal basis in the EPC for a distinction between the text referred to in a communication under R 71(3) EPC and that reflecting what the examining division actually intended. Moreover, R 71(6) EPC addressed the possibility that the text communicated under R 71(3) did not reflect the

appellant's requests. In the board's judgement, R. 71(3) EPC thus imposed on the applicant a duty to check and verify this text. The fact that an applicant did not exercise its right to request amendments under R. 71(6) EPC could therefore only be interpreted as approval of the communicated text, i.e. the text intended for grant. Whether the applicant noticed a possible error had no effect on the fact that this approval was binding.

In T 265/20 the board held that the prerequisites for the legal consequence foreseen in R. 71(5) EPC were fulfilled. The legal consequence was that the applicant was deemed to have given approval to the text communicated to it under R. 71(3) EPC. The unambiguous wording of R. 71(5) EPC did not allow for an interpretation other than the foreseen legal consequence. Firstly, there was no legal basis in the EPC for a distinction between the text referred to in a communication under R. 71(3) EPC and the text really intended by the examining division (see also T 2277/19, point 1.3 of the Reasons). Secondly, it was not the content of the text which triggered the deemed approval under R. 71(5) EPC, but the applicant paying the fee and filing the translations according to R. 71(5) EPC. It followed that it was pointless to explore the "true will" of the members of the examining division when editing the communication pursuant to R. 71(3) EPC. It was the applicant itself with whom the final responsibility for the text remained, not the examining division. The board further considered that decisions T 1003/19 and T 2081/16 did not amount to diverging case law; it had no doubt that the wording of R. 71 EPC did not allow it to be concluded that the "true will" of the examining division was something that had to be taken into consideration.

c) Auxiliary request issues

Where it is not clear which higher request the applicant wishes to pursue, the examining division must request that the applicant clarify this in resumed examination proceedings. (Guidelines C-V, 4.9 – March 2022 version).

In T 1255/04 (OJ 2005, 424) the board held that in a case where a request was considered allowable on which a R. 51(4) EPC 1973 (now R. 71(3) EPC) communication was to be sent, but where higher-ranking requests were not allowed, the communication under R. 51(4) EPC 1973 would be deficient if it was not accompanied by reasons why the higher-ranking requests were not allowed. This communication should also expressly mention the option of maintaining the disallowed requests, thus reminding the applicant and the examining division of the possibility for the applicant of asking for a written appealable decision on these higher-ranking requests (T 1181/04, OJ 2005, 312, followed). It pointed out that if the applicant maintained a still pending higher-ranking request discussed at the oral proceedings before the examining division, that request could not be refused under R. 86(3) EPC 1973. R. 86(3) EPC could not be used to deprive an applicant from obtaining a decision giving the substantive reasons for refusal of a request already considered in substance during the proceedings. A decision merely stating that the application was refused because there was no version approved of by the applicant within the meaning of Art. 113(2) EPC 1973 on which a patent could be granted, was inadequately reasoned because it did not give the substantive reasons why what the applicant did not approve of was not in conformity with the patentability requirements of the EPC.

In T.169/96 the board held that according to Art. 113(2) EPC 1973, the EPO was bound to the requests of the applicant or proprietor. In case of main and auxiliary requests, this meant that the EPO was also bound to the order of the requests. Before a decision could be taken on the basis of an auxiliary request, the main request had to be examined and decided upon (see also T.484/88). In the case in hand the applicants were only invited to indicate their approval of the text according to auxiliary request III. Therefore, their express disapproval related necessarily only to this version of the application. Hence, auxiliary requests I and II were pending when the decision under appeal was taken and the failure to give a decision on these requests was a violation of Art. 113(2) EPC 1973. The failure to deal with the requests preceding auxiliary request III violated also R. 68(2) EPC 1973. If a decision related to several requests, it had to give reasons for the rejection of each one (see T.234/86). The fact that the first examiner had expressed a preliminary view in a previous communication which might be applicable to these requests could not replace reasons in the decision itself. It had to be clear from the decision which considerations led the division to its conclusions (T.234/86, see also T.1439/05).

In T.255/05 the board observed that the appellant's "auxiliary request" was not one single request but encompassed numerous requests. It was totally undefined in which order these four requests and any such combination requests should be considered by the board. The board noted that according to Art. 113(2) EPC 1973, the EPO should consider or decide upon the European patent application only in the text submitted to it, or agreed, by the applicant. It was therefore the applicant's responsibility to define the text on the basis of which it requested a patent to be granted. In the case of auxiliary requests this included the requirement that the applicant had also to indicate the order in which the requests were to be examined. As a consequence, when the appellant, even after having been invited to do so by the board, did not clearly indicate the order in which its several requests were submitted and what the exact content of each of these requests was, there was no text submitted or agreed by the applicant within the meaning of Art. 113(2) EPC 1973 and no request which could be considered by the board. Therefore, the appellant's "auxiliary request" had to be disregarded.

In T.888/07 the board held that if the examining division refused to consent to the latest submitted set of amended claims, put forward to substitute the claims previously on file under R. 86(3) EPC 1973, the previous set of claims that the examining division had consented to consider but which the applicant had not maintained as an auxiliary request was not automatically revived. It noted that in accordance with Art. 113(2) EPC and established case law (see e.g. T.237/96) a decision could not be based on the previous set of claims. Art. 113(2) EPC 1973 stated that the EPO had to consider and decide upon the European application or patent only in the text submitted to it, or agreed to, by the applicant or proprietor. Deciding to refuse an application on the grounds that the claims previously on file were not allowable would have contravened Art. 113(2) EPC 1973, since these claims were no longer pending.

3.3. Amendments or corrections filed in response to the communication under Rule 71(3) EPC

3.3.1 Amendments where Rule 71(3) EPC communication is the first communication

By way of exception, in cases where the R. 71(3) EPC communication is also the first communication in examination proceedings, amendments filed in response thereto must be admitted into the proceedings under R. 137 EPC. However, where a further R. 71(3) EPC communication is sent in respect of such cases, any amendments filed in response thereto must be consented to by the examining division according to R. 137(3) EPC (see Guidelines C-V, 4.4 – March 2022 version).

3.3.2 Amendments and corrections requested according to Rule 71(6) EPC

R. 71(6) EPC reads as follows: "If the applicant, within the period under paragraph 3, requests reasoned amendments or corrections to the communicated text or keeps to the latest text submitted by him, the examining division shall issue a new communication under paragraph 3 if it gives its consent; otherwise it shall resume the examination proceedings". On the possibility to waive the right to a further communication under Rule 71(3) EPC (abolished as of 1 July 2020) see above in chapter IV.B.3.2.2.

Where amendments or corrections are not admitted, or where they are admitted but not considered allowable, examination will be resumed (Guidelines H-II, 2.5.2 – March 2022 version).

In T. 1567/17 the board held that the applicant's remark in a response under R. 71(6) EPC that an amended feature "can also be omitted if regarded as violating Art. 123(2) EPC" could not be construed as waiving its right to be heard and its right to a reasoned decision in case the application were to be refused. Rather, this remark merely intimated that the applicant would accept the issue of a new communication under R. 71(3) EPC on the basis of the amended set of claims without said feature. The appellant had been given no opportunity to respond to the division's opinion on this issue and the board held that the direct refusal of the application by the examining division was in violation of Art. 113(1) EPC. Surrender of a right cannot be simply presumed (referring to G. 1/88, OJ 1989, 189; T. 685/98, OJ 1999, 346).

3.3.3 Criteria for admitting amendments filed in reply to the Rule 71(3) EPC communication

The criteria for accepting or refusing requests for amendment under R. 137(3) EPC (former R. 86(3) EPC 1973), or correction under R. 139 EPC (former R. 88 EPC 1973), have not been changed by new R. 71 EPC (former R. 51 EPC 1973), which entered into force on 1 April 2012 (OJ 2010, 637).

Decision G. 7/93 (OJ 1994, 775) dealt with the criteria for assessing the admissibility of late-filed amendments in examination. In particular, applying the principles of G. 7/93 to amendments filed in response to the communication under R. 71(3) EPC means that this